

**PEARCE PROPOSAL ESTIMATE**

1222 Vine Street	Est. #:	20260514_MaiaEdge_Hubbard_TX_Nexus_Phase_1
Suite 301	Est. Date:	5/14/2026
Paso Robles, CA 93446	Est. Exp:	5/28/2026
www.pearce-services.com	Account Manager Name	Jeremy Gallagher

PREPARED FOR		
MaiaEdge Tim Ziemer timziemer@maiaedge.io 612.840.2493	Work to be completed at:	Nexus Data Center Campus, Hubbard TX Pearce Project Manager POC: Jayla McPherson

SCOPE OF WORK

SOW/Scope: Please reference Nexus SOW V2 051426 (Seperate PDF)

Overall Approach

Pearce will support MaiaEdge in determining the ideal design specifications required as per the networking specifications provided by Nexus for the 4,000-acre AI Data Center Campus located in Hubbard, TX. This information would include fiber infrastructure and connectivity design based on the proposed networking architecture and associated facility/pathway designs provided by Nexus and the respective engineering/construction teams.

It is our understanding that the overall campus project is broken down into several phases. Phase 1 includes (1) Carrier Hotel along with the initial (10) Data Halls. Pearce will support MaiaEdge's Phase 1 activities for the initial 90 days.

The resulting design recommendations and supporting deliverables may provide a blueprint for the remaining phases should Nexus decide to incorporate the same design strategy going forward. If additional review of phases is required, Pearce and MaiaEdge will accommodate additional design work.

At the end of the initial 90-day review/design process, being coordinated by MaiaEdge, a BOM will be created and shared with Nexus to purchase the recommended equipment for Phase 1. We will also include recommended vendors to purchase from for Phase 1.

The purchasing, logistics and storage of this equipment will be the responsibility of Nexus.

Additional Access, Vendors, and Design Information Required**Access Information**

- 1.Pearce will require, through MaiaEdge and Nexus coordination, access to the Hubbard, TX site to conduct business and work with Nexus and their associated vendors.
- 2.All safety and PPE requirements by Nexus will be followed by Pearce personnel.

Vendor Access

- 1.Pearce will require, through MaiaEdge and Nexus coordination, full access to vendors involved in the project, which are applicable to the specific scope we are consulting.
- 2.Pearce, through MaiaEdge and Nexus coordination, agree to enter NDAs with these vendors to ensure information is not discussed with others outside of this initiative.

Design Information

- 1.Pearce will require, through MaiaEdge and Nexus coordination, full access to all build or design drawings and other information currently associated with this scope of the project.
- 2.Pearce will require, through MaiaEdge and Nexus coordination, any additional information required from an ISP (Inside Plant) OSP (Outside Plant) or campus environment design requirements perspective.
- 3.Pearce will require, through MaiaEdge and Nexus coordination, full access to any customer specific design requirements to ensure they are included in the recommendation.

Funding

Based on the currently understood Phase 1 scope, Pearce estimates the initial 90 days will require a budget not to exceed \$1M. This 90-day timeline is dependent upon the timely and full access to the required information for Pearce and MaiaEdge to complete their work.

Pearce Rates

- 1.Pearce rates will be \$250 per hour for this work.
- 2.Any travel costs (Lodging and other costs) will be billed at the local Dallas, TX rate.
- 3.Any work product that requires additional funds will be passed through to Nexus.

Assumptions: This is a NON-Prevailing Wage proposal. Any delays or restricted access, or additional mobilizations outside of Pearce control may result in additional charges. This quote is based on Time & Materials (T&M). A change order will be processed if the estimated total is anticipated to be exceeded.

PROPOSAL ITEMS

Item Description	Amt	Est. Quantity	Rate	Amount
estimate - Design/Consulting \$/hr	1	2000	\$ 250.00	\$ 500,000.00
estimate - Travel	1	1	\$ 35,000.00	\$ 35,000.00
				\$ -
				\$ -
				\$ -
				\$ -
				\$ -
Total				\$ 535,000.00

The above referenced Customer has requested the proposed Services from Service Provider in accordance with the following terms and conditions. Issuance of a Purchase Order acknowledges acceptance of the scope of work and the terms described herein.

Service Provider and Customer are referred to herein as the "Parties" and each may be referred to individually as a "Party."

TERMS AND CONDITIONS

1. **Payments; Taxes.** All payments due to Service Provider hereunder are Net 15 of date of the applicable invoice. All unpaid amounts due to Service Provider hereunder shall bear interest at the rate of two percent (2%) per month or at the highest rate permitted by California law, whichever is less. In the event that any payment of funds is returned uncollectible for any reason, the Customer shall be assessed and shall immediately pay a \$50.00 "bad check" administrative charge, in addition to any service charges incurred by the Company. All amounts due to Service Provider hereunder are net of any and all taxes (including withholding taxes), assessments, charges and levies of any Governmental Authority, all of which shall be the sole obligation of Customer, except for taxes payable on the income of Service Provider.

2. **Warranty.** Service Provider represents and warrants to Customer that all of the Services shall be performed in accordance with terms of this Purchase Order (and the standards of performance set forth herein) by qualified personnel, and shall be free from defects in workmanship ("Warranty"). Customer's sole remedy for any breach of this Warranty by Service Provider shall be the limited to Service Provider's re-performance of the applicable portion of the Services until it complies with the Warranty. The foregoing Warranty applies to any defect that appears within three hundred sixty five (365) days from the date of the Purchase Order giving rise to the claim. Each Party shall notify the other Party promptly after such Party becomes aware of a defect. EXCEPT FOR THE FOREGOING REPRESENTATIONS AND WARRANTIES, SERVICE PROVIDER HEREBY DISCLAIMS ALL OTHER REPRESENTATIONS AND WARRANTIES, WHETHER EXPRESS OR IMPLIED, INCLUDING, WITHOUT LIMITATION, IMPLIED WARRANTIES OR FITNESS OR MERCHANTABILITY FOR USE AND/OR A PARTICULAR PURPOSE.

3. **Limitations on Liability.** IN NO EVENT SHALL SERVICE PROVIDER BE LIABLE UNDER ANY CIRCUMSTANCES FOR SPECIAL, INDIRECT, PUNITIVE OR CONSEQUENTIAL DAMAGES OF ANY NATURE WHATSOEVER (WHETHER ARISING OUT OF CONTRACT, STRICT LIABILITY, OR OTHERWISE), INCLUDING, WITHOUT LIMITATION, ANY LOST REVENUES OR PROFITS OF CUSTOMER, ARISING OUT OF A BREACH OF ANY WARRANTY TO CUSTOMER

4. **Indemnification.** Company and Service Provider shall indemnify, defend and hold harmless one another, and their respective members, partners, subsidiaries, affiliates, parent companies, shareholders and holders of ownership interests, mortgagees, landlords and tenants, officers, directors, employees, agents, trustees, representatives, successors and assigns against any and all losses, damages, claims, expenses, and other liabilities, including without limitation, reasonable attorney's fees, for third party claims for death, personal injury or damage to property to the comparative extent that the same have been caused by the negligent acts of the other party, its officers, directors, employees, subcontractors or anyone else that such party controls, in connection with the performance of the Services under this Purchase Order. This indemnity shall survive the termination of this Purchase Order.

5. **Confidentiality.** Subject to this Section 5, each Party shall maintain in confidence all Confidential Information of the other Party and of its Affiliates and shall not use, copy or disclose any such Confidential Information without the other Party's prior written consent.

6. **Termination.** In the event of early termination due to circumstances beyond the control of Service Provider, Service Provider shall be paid for the Services, as well as any costs or expenses, including cancellation costs, it incurs that are necessary to implement the termination. Any such payments shall be made within fifteen (15) days after Customer receives Service Provider's invoice and in accordance with the terms of Section 1. Service Provider shall deliver all deliverables performed as part of such Services up until the date of such termination. Upon the effective date of such notice, Service Provider shall perform no further Services and incur no other costs or expenses other than those reasonably necessary to implement the termination.

7. General Provisions.

(a) All notices required hereunder must be in writing and may be delivered personally, by overnight courier (e.g., Federal Express), or by certified or registered mail, return receipt requested, addressed to the Parties at the respective addresses set forth above (and if to Service Provider, a copy of the notice shall be sent to the attention of the Chief Financial Officer). A notice shall be deemed given on the earlier of its date of delivery or the third business day after its date of mailing or transmission.

(b) All services described in this Purchase Order are to be performed during Service Provider's standard business hours, unless otherwise noted in this Purchase Order.

(c) In the event Service Provider is not afforded appropriate access to the site to perform the Services described herein due to conditions beyond its reasonable control additional, then charge(s) will apply.

(d) Company shall not be held liable for errors or omissions in the design or workmanship of others, nor inadequacies of materials and equipment specified or supplied by others.

(e) Service Provider shall be excused for any reasonable delay in its performance under this Purchase Order, if such delay shall be due to any cause beyond its reasonable control, including, but not limited to direct, indirect, special, incidental, contingent, consequential or similar damages of any kind resulting from accidents, misuse, negligence or failure of Customer or any third party, including, without limitation; acts of God, civil disturbance, vandalism, original design, materials, fabrication, deterioration or subsurface conditions., or the public enemy, valid law, acts or requests of any Governmental Authority, wars or acts of war, terrorist acts, threats of terrorism, floods, fires, storms, strikes, lockouts, delivery of nonconforming or defective raw material, supplies or equipment, interruptions of transportation, freight embargoes or failures, exhaustion or unavailability on the open market or delays in delivery of raw material, supplies, equipment, or services necessary for the performance of any provision hereof, or happening of any unforeseen acts, misfortune, or casualty by which performance hereunder is delayed or prevented, provided, however, that Service Provider will use all commercially reasonable efforts to remedy the situation. In the event that Service Provider's technician(s) arrive at the Customer's site and Customer's site is not prepared, available and/or otherwise in a condition that would allow the Service Provider's technician(s) to complete the full scope of work outlined in this Purchase Order, Service Provider will charge the Customer on a Time and Materials basis to complete the scope of work.

(f) **Amendments and Waivers.** Any term of this Purchase Order may be amended or waived only with the written consent of both parties.

(g) **Severability.** If one or more provisions of this Purchase Order are held to be unenforceable under applicable law, then parties agree to renegotiate such provision in good faith. In the event that the parties cannot reach a mutually agreeable and enforceable replacement for such provision, then (i) such provision shall be excluded from this Purchase Order, (ii) the balance of the Purchase Order shall be interpreted as if such provision were so excluded and (iii) the balance of the Purchase Order shall be enforceable in accordance with its terms.

(h) **Prevailing Wage.** Pricing assumes that prevailing wage rates and certified wage reporting do not apply.

8. **Defined Terms.** As used herein, the following capitalized terms shall have the respective meanings given them below:

“Confidential Information” shall mean any and all business and technical information of a Party disclosed to, or otherwise acquired or observed by, the other Party, whether communicated in writing, orally, electronically or in any other form, including, but not limited to, the terms and conditions of this Purchase Order, except Confidential Information does not include any information which (1) becomes generally available to the public through no fault of the receiving Party, (2) was independently developed by the receiving Party without access to the disclosing Party’s Confidential Information or (3) becomes available to the receiving Party on a non-confidential basis from a source other than the disclosing Party; provided that such source is not prohibited from transferring the information to the receiving party by a contractual, legal or fiduciary obligation.

“Governmental Authority” shall mean any Federal, state, local or foreign governmental authority, agency, court, regulatory commission or other governmental body.

“Services” shall mean the services described in this Purchase Order.